

25PSCV03282 25PSCV03282

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-07-28

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Case Number: 25PSCV03282 Hearing Date: July 28, 2026 Dept: H

J&P Equipment

Rentals v. Gaby's Tacos, Case No. 25PSCV03282

ORDER ON MOTION

TO BE RELIEVED AS COUNSEL

Counsel for Cross-Defendant BCS

Technology and Graphics LLC's (i.e., Jackman Law, P.C.) Motion to be

Relieved as Counsel is

GRANTED, effective upon the filing of the proof of

service reflecting service of the signed

order upon Client at Client's last known address. The

Court will set an Order to Show Cause Re: Representation

of LLC for September 4, 2026, at 8:30 a.m.

Background

Plaintiff

J&P Equipment Rentals ("Plaintiff") alleges damages arising out of a

February 22, 2024 motor vehicle accident.

On September 10, 2025, Plaintiff

filed a complaint, asserting a negligence cause of action against Gaby's Tacos,

LLC ("Gaby's Tacos") and Does 1-20.

On October 30, 2025, Gaby's

Tacos filed a cross-complaint, asserting causes of action against BCS

Technology and Graphics ("BCS"), David Lopez ("Lopez") and Roes 1-20 for: (1) Equitable

Indemnity, (2) Contribution, and (3) Declaratory Relief.

On May 28, 2026, Lopez's default was entered on the cross-complaint.

A Case Management Conference is set for July 28, 2026.

The Final Status Conference is set for October 22, 2026. Trial is set for November 4, 2026.

Discussion

Jackman Law, P.C. ("Firm") seeks to be relieved as counsel of record for BCS ("Client").

The court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client and it does not disrupt the orderly process of justice. (See *Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915; *People v. Prince* (1968) 268 Cal.App.2d 398.)

California Rules of Court, rule 3.1362 requires (1) a notice of motion and motion directed to the client (made on the Notice of Motion and Motion to Be Relieved as Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure § 284(2) is brought instead of filing a consent under section 284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052)); (3) service of the notice of motion and motion, the declaration, and the proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)). The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (Cal. Rules Court, rule 3.1362(e).)

Attorney

Ryan E. Jackman ("Jackman") represents that "[t]he

attorney-client relationship has broken down to the extent that I am unable to continue representation." He further advises that he must withdraw "for ethical reasons," that the reason for withdrawal is "mandatory," and that he is precluded by the principles of attorney-client privilege from disclosing the reasons for same.

Jackman

states that he has served Client by mail at Client's last known address with copies of the motion papers served with his declaration and that he has confirmed within the past 30 days that the address is current by verifying the registered agent for service of process through Secretary of State records, which match the address provided by Client.

The Court determines that the requirements of Rules of Court Rule 3.1362 enumerated above have been sufficiently met.

Accordingly, the motion is granted, effective upon the filing of the proof of service reflecting service of the signed order upon Client at Client's last known address.

The

Court will set an Order to Show Cause Re: Representation of LLC for September 4, 2026, at 8:30 a.m. The Court directs counsel to provide notice of the OSC to Client.